

WORLD TRADE ORGANIZATION

RESTRICTED

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**Working Party on the Accession
of the Russian Federation**

REPORT OF THE WORKING PARTY ON THE ACCESSION OF THE RUSSIAN FEDERATION

*Part II – Schedule of Specific Commitments on Services
List of Article II MFN Exemptions*

Addendum

As indicated in paragraph 1451 of the Report of the Working Party on the Accession of the Russian Federation (WT/ACC/RUS/70 and WT/MIN(11)/2), the Schedule of Specific Commitments on Services resulting from the negotiations between the Russian Federation and WTO Members is annexed to the Protocol of Accession of the Russian Federation and is reproduced hereunder.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
I. HORIZONTAL COMMITMENTS			
In the present Schedule of Specific Commitments (hereinafter "the Schedule"):			
- Asterisk (*) designates "part of"; - CPC numbers indicated in the brackets with regard to sectors/sub-sectors of services are references to the UN Provisional Central Product Classification of the UN (Statistical Papers Series M No. 77, Provisional Central Product Classification, Department of International Economics and Social Affairs, Statistical Office of the United Nations, New York, 1991). The (**) indicates that the service specified constitutes only part of the total range of activities covered by CPC concordance (as indicated in MTN.GNS/W/120); - "Juridical person of the Russian Federation" means a juridical person as defined in the legislation of the Russian Federation.			
All sectors/sub-sectors included in this Schedule			
- Subsidies and other forms of State support		(3) Access to subsidies and other forms of State support, including access to the financial and other material resources of the State, may be granted only to juridical persons of the Russian Federation established within the territory of the Russian Federation or established within a particular region of the Russian Federation. As criteria of access of these juridical persons to subsidies and other forms of State support, including access to the financial and other material resources of the State, different qualifications such as, <i>inter alia</i>, belonging to small business enterprises, entities of social importance and public utilities, as well as employment of categories of persons suffering from their unfavourable social and economic position, may be considered. Unbound with respect to subsidies and other forms of State support related to research and development	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
		as well as supply of services within the public sector ¹ . (4) Access to subsidies and other forms of State support, including access to the financial and other material resources of the State, may be granted only to citizens of the Russian Federation.	
- Land transactions		(1), (2), (3), (4) Foreign ownership is prohibited for agricultural land and border territories and may be limited for other types of land. Rent of land plots is permitted for the period of 49 years (with possible prolongation).	
- Participation in privatization and companies to be privatized	(3) Commercial presence through the participation ² in privatisation and/or through participation in the juridical persons of the Russian Federation to be privatised may be limited.	(3) Commercial presence through the participation ⁴ in privatisation and/or through participation in the juridical persons of the Russian Federation to be privatised may be limited.	
- Types of commercial presence	(3) Representative offices are not allowed to perform any commercial activity, including the supply of services. Unbound with respect to commercial presence through constitution, acquisition or maintenance of a non-commercial organisation (unless otherwise provided in the Sector-specific commitments of this Schedule).	(3) Unbound with respect to commercial presence through constitution, acquisition or maintenance of a non-commercial organisation (unless otherwise provided in the Sector-specific commitments of this Schedule).	

¹ For the purposes of this limitation, these services shall be understood as those types of services receiving subsidies as of 19 November 2006.

² The limitation on participation does not extend to foreign financing of privatization not resulting in acquisition of control and/or property rights.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
- Public utilities	(3) In the Russian Federation services considered as public utilities as of the date of accession at a national ³ or local level may be subject to public monopolies or to exclusive rights granted to private operators ⁴ .		
- Indigenous small peoples and exiguous ethnic communities		(1), (3), (4) Special regime of the use of land of traditional residence and economic activity of the indigenous small peoples and exiguous ethnic communities may be established.	
- Production sharing agreements for the exploration, development and production of mineral raw materials		(1), (3) Juridical persons of the Russian Federation have the priority right to take part in the conduct of the Agreement operations as contractors, suppliers, carriers or in any other capacity under agreements (contracts) with Investors. (4) Not less than 80% of all employed personnel engaged in realization of a production sharing agreement should be citizens of the Russian Federation.	
- Presence of natural persons	(4) Unbound, except for: A. <u>Intra-corporate transfer (ICT)</u> . In respect of intra-corporate transfer temporary entry and stay in respect of natural persons who are not citizens of the Russian Federation seeking entry for the purpose of: (a) supply of service through a	(4) Unbound, except for measures indicated in the column "Limitations on market access" and subject to the following: - only natural persons temporarily or permanently residing in the Russian Federation and possessing the Russian qualification certificate of professional accountant may hold	

³ Pursuant to existing federal legislation.

⁴ Explanatory note: Exclusive rights on such services may be granted to private operators, for instance operators with concessions from organs of state power and local self-governmental organs, subject to specific services obligations. Given that public utilities often also exist at the level of the subjects of the Russian Federation and at the level of local self-government, detailed and exhaustive sector-specific scheduling is not practical.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	commercial presence in the territory of the Russian Federation, shall be for a maximum period of 3 years (which may be extended) provided that said natural persons: - are considered as key personnel; - are temporarily transferred into a commercial presence constituted in the territory of the Russian Federation, in the form of subsidiary, dependent company or branch of a juridical person of another Member performing such intra-corporate transfer, which are effectively engaged in the supply of respective services in the territory of the Russian Federation; - no less than 1 year immediately prior to the said intra-corporate transfer have been employed by a juridical person of another Member performing such intra-corporate transfer.	a position as a chief accountant or an acting chief accountant⁵.	

⁵ Foreign natural persons entering the territory of the Russian Federation to hold a position as chief accountant can obtain the status of temporary resident in accordance with the legislation of the Russian Federation before entering the territory of the Russian Federation.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	(b) representation of the interests of a juridical person of another Member performing such intra-corporate transfer, through a representative office in the territory of the Russian Federation, shall be for a maximum period of 3 years (which may be extended) provided that such natural persons: - hold the position of head of a representative office or serve as senior managers of the representative office of a juridical person of another Member performing such intra-corporate transfer; - are temporarily transferred into a representative office in the Russian Federation; - have been employed by a juridical person of another Member performing such intra-corporate transfer not less than 1 year immediately prior to the said intra-corporate transfer. With respect to intra-corporate transfer to a representative office the total number (including the head of the representative office) of natural persons shall not exceed 5; and with respect to banking, shall not exceed 2.		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	In this context the following categories of natural persons are understood as "key personnel": - persons working in senior positions within the aforementioned commercial presence (subsidiary, dependent company or branch) who primarily direct the management of such commercial presence receiving general supervision or direction principally from the board of directors or stockholders or their equivalent; - persons working in the aforementioned commercial presence (subsidiary, dependent company or branch) and possessing high level of qualification and/or uncommon knowledge essential for the supply of services by such commercial presence. Only a natural person permanently residing in the territory of the Russian Federation and possessing a Russian qualification certificate of professional accountant may hold a position of a chief accountant or an acting chief accountant.		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	B. <u>Business visitors (BV)</u>. A period of maximum 90 days inclusively is set up for the temporary entry and stay in the territory of the Russian Federation of natural persons who are not citizens of the Russian Federation seeking such temporary entry and stay for the purpose of: - representation of a foreign service supplier in negotiations for supply of services; - establishment of commercial presence (mentioned in section A of these commitments) of a service supplier of another Member. T he aforementioned persons shall not be engaged in the direct supply of such services and shall not supply such services themselves.		I I. SECTOR SPECIFIC COMMITMENTS

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation, which is a commercial organisation of organisational and legal form other than an open joint-stock company. - at least five auditors possessing a qualification certificate must be on the staff of an auditing organisation. - persons engaged in auditing activities are not allowed to perform any other business activity not associated with auditing (4) Unbound except as indicated in Part I "Horizontal commitments", and subject to the following: - not less than 75% of the staff of an auditing organization headed by a foreigner must be citizens of the Russian Federation; (3) None, except as indicated in the column "Limitations on market access".			

⁸ Activities associated with auditing:

- the arrangement, restoration and running a bookkeeping system, the compilation of financial (accounting) statements, the provision of accounting consultations;
- the provision of tax consultations;
- the analysis of the organization's and individual entrepreneur's financial and economic activities, the provision of economic and financial consultations;
- the provision of management consultation, in particular, in connection with a re-structuring of the organization;
- the provision of legal advice and also representation in the court and tax bodies in relation to tax and customs disputes;
- the implementation of accounting automation and information technologies;
- the appraisal of assets, the appraisal of enterprises as an aggregate of assets and also entrepreneurial risk assessment;
- the elaboration and analysis of investment projects, the compilation of business plans;
- the performance of marketing studies;
- the performance of research and development in a field connected with audit and the dissemination of their results, in particular on paper and electronic media;
- the training of specialists in audit-related fields in the manner established by Russian law;
- the provision of other audit-related services.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
- only those employees of a legal entity who possess auditor qualification certificates are allowed to act as auditors; - the access to the procedures of certification is allowed only to persons who have a work record of no less than 3 out of the last 5 years in an economic or juridical speciality; - persons engaged in auditing activities are not allowed to engage in any other business activity not associated with auditing.			B ookkeeping/Accounting Services (1), (2) None except the following: - the accounting report must be signed by an accountant/bookkeeper certified under the law of the Russian Federation, who works under contract with a juridical person of the Russian Federation. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. (1), (2) None, except the following: - the accounting report must be signed by an accountant/bookkeeper certified under the law of the Russian Federation, who works under contract with a juridical person of the Russian Federation. (3) None, except as indicated in the column "Limitations on market access".

⁹ Bookkeeping and accounting services shall be understood to mean operation in the field of accountancy/bookkeeping, namely:

- organization of bookkeeping and presentation of accounting statements to the end-user concerned (e.g. chief executives, founders, participants, owners, lenders, tax and finance authorities);

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(4)	Unbound except as indicated in Part I "Horizontal commitments".		
(4)	Unbound except as indicated in Part I "Horizontal commitments" and the following:		
-	only natural persons temporarily or permanently residing in the Russian Federation may hold a position of a head of an organisation supplying bookkeeping services.		

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- operation in concrete bookkeeping and accounting area/areas, such as, for example, keeping account of fixed assets, inventory holdings, production costs or sales of products (e.g. goods, works, services);
 - consulting on issues of organization and management of accounting records for fuller and more accurate reflection of the objects of accounting (e.g. assets, liabilities, capital) and their movement in the course of economic activity based on the requirements of the legislation in force regulating bookkeeping.

¹⁰ Foreign natural person entering the territory of the Russian Federation to hold a position of a head of an organisation supplying bookkeeping/accounting services can obtain the status of temporary resident in accordance with the legislation of the Russian Federation before entering the territory of the Russian Federation.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(1) None. (2) None. (3) None.			
(4) Unbound except as indicated in Part I "Horizontal commitments". (1) None. (2) None. (3) None, except the following: - unbound with respect to subsidies and other forms of State support related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".			

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments". (1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and the following: - unbound with respect to subsidies and other forms of State support for real-estate services, related to buildings, land plots and objects of national identity and/or buildings, land plots and objects of cultural heritage specified in official registries. (4) Unbound except as indicated in Part I "Horizontal commitments".		E Rental/Leasing Services without Operators	(a) Relating to ships (CPC 83103) (1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - the right to fly the State flag of the Russian Federation shall be granted to vessels owned by: - citizens of the Russian Federation; - juridical persons of the Russian Federation; - subjects of the Russian Federation; and - municipal bodies. (4) Unbound, except as indicated in Part I "Horizontal commitments". (1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access".

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(o) Building-cleaning services (CPC 874)	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal section".	
(p) Photographic Services (CPC 875*), except: - specialty photography services (CPC 87504) - and other photographic services (CPC 87509)	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except the following: - unbound with respect to subsidies and other forms of State support related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".	
(q) Packaging Services (CPC 876*), except: - bottling of alcoholic and alcohol-containing products	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	
(r) Printing, publishing (CPC 88442)	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. - for publishing: founders of mass media agencies cannot be foreign citizens or persons without citizenship. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".	
(s) Services directly related to organisation and holding of negotiations, meetings and conferences (CPC 87909*)	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(t) Other: - Translation and interpretation services (CPC 87905); - Duplicating services (CPC 87904); - Specialty (interior) design services (CPC 87907)	(1) None. (2) None. (3) None (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound, except as indicated in Part I "Horizontal commitments".	
- Hairdressing and barbers' services (CPC 97021) and Cosmetic treatment, manicuring and pedicuring services (CPC 97022)	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	
2. COMMUNICATION SERVICES			
B. Courier services (CPC 7512*)			
Only with respect to: - Handling ¹³ of addressed parcels and packages (including books, catalogues); - Handling ¹⁴ of addressed press products (journals, newspapers, periodicals); - Express delivery services ¹⁵ for addressed letters, addressed parcels and packages, and addressed press products.	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	Juridical persons of the Russian Federation, which are operators supplying services listed in the column "Sector/subsector" (including those with foreign participation), will exercise their activity under conditions (enjoy the treatment) not less favourable than the conditions (treatment) enjoyed by the national postal operator with respect to the provision of services not assigned as an exclusive right to a national postal operator (competitive type of activity).

¹³ The term "handling" should be taken to include clearance, sorting, transport and delivery.

¹⁴ The term "handling" should be taken to include clearance, sorting, transport and delivery.

¹⁵ Express delivery services, in addition to significantly greater tariffs for delivery of written correspondence (i.e. letters, post cards), as well as high speed and greater reliability of delivery, may include other value added elements such as collection from point of origin, personal delivery to addressee, tracing and tracking, possibility of changing the destination and addressee in transit, confirmation of receipt. Significantly greater tariffs for delivery of written correspondence are tariffs, which are more than five times higher in comparison with the basic public tariff of the national postal operator for a delivery of written correspondence in the first weight of the fastest standard category.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
C. Telecommunications services¹⁶ (Telecommunications ¹⁷ services for the purposes of this Schedule do not include the distribution ¹⁸ of television and/or radio programmes)			
(a) Public voice telephone services (CPC 7521): - local telephone services (CPC 75211); - long distance and international communication services (CPC 75212); - mobile telephone services (CPC 75213). (b) Packet switched data transmission services (CPC 7523**) (c) Circuit-switched data transmission services (CPC 7523**) (g) Private leased circuit services (CPC 7522**, 7523**) (h) Electronic mail (CPC 7523**) (i) Voice mail (CPC 7523**) (j) On-line information and data base retrieval (CPC 7523**) (k) Electronic data interchange (EDI) (CPC 7523**) (l) Enhanced/value-added facsimile services, incl. store and retrieve (m) Code and protocol conversion (n) On-line information and/or data processing (incl. transaction processing) (CPC843**)	(1) None, except the following: - unbound with respect to radio communication services including satellite communication, except: - from the date of Russia's accession to the WTO, none only with respect to fixed satellite services provided by foreign satellite operators to any juridical person of the Russian Federation possessing a licence for telecommunication services; - after 3 years, starting from the date of Russia's accession to the WTO, none with respect to other satellite services provided by foreign satellite operators to any juridical person of the Russian Federation possessing a licence for telecommunication services. (2) None. (3) None, except the following : - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - total foreign participation in the	(1) None, except the following: - unbound with respect to radio communication services including satellite communication, except: - from the date of Russia's accession to the WTO, none only with respect to fixed satellite services provided by foreign satellite operators to any juridical person of the Russian Federation possessing a licence for telecommunication services; - after 3 years, starting from the date of Russia's accession to the WTO, none with respect to other satellite services provided by foreign satellite operators to any juridical person of the Russian Federation possessing a licence for telecommunication services. (2) None. (3) None, except as indicated in the column "Limitations on market access".	The Russian Federation undertakes additional commitments as contained in the Reference Paper "Additional Commitments of the Russian Federation in Basic Telecommunications Services" attached to this Schedule of Specific Commitments.

¹⁶ Commitments on Telecommunication services are scheduled taking into account the provisions of the following documents: "Notes for Scheduling Basic Telecom Services Commitments" (S/GBT/W/2/Rev.1); "Market Access Limitations on Spectrum Availability" (S/GBT/W/3).

¹⁷ "Telecommunications" means the transmission and reception of signals by any electromagnetic means.

¹⁸ Distribution of television and/or radio programmes is defined as the uninterrupted transmission of signals required for the distribution of TV and radio programme signals to the general public, but does not cover contribution links between operators.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(o) Other (CPC 7529)	charter capital (voting shares) of incumbent operators (listed in the Annex I and successors of those, listed in the Annex I) may be limited to 49% for a period not to exceed 4 years starting from the date of Russia's accession to the WTO. (4) Unbound except as indicated in Part I "Horizontal commitments".	(4) Unbound except as indicated in Part I "Horizontal commitments".	
(d) Telex services (part of CPC 7523**) (e) Telegraph services (part of CPC 7522*) (f) Facsimile services (part of CPC 7521**, 7529**)	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
D. Audiovisual services			
(a) Motion picture and video tape production and distribution services (CPC 9611*) only with respect to the sale or rental of movies or tapes to other industries for public entertainment, or sale or rental to others. For the purpose of clarity: these commitments do not cover motion picture or video tape broadcasting or other similar forms of transmission to the general public	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State. (4) Unbound except as indicated in Part I "Horizontal commitments".	
(b) Motion picture or video tape projection services (CPC 96121* and CPC 96122*) by Cinema theatre owners only, excluding projection services for government ¹⁹ endorsed film festivals and other cultural events	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - authorisation from local authorities on a non-discriminatory basis is required, taking into account city development planning and programmes of social and economic development in their jurisdiction. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) Unbound. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State; - unbound with respect to timing and selection of repertoire for selected segments of the population, for example repertoire for children or indigenous ethnic communities or other ethnic groups. (4) Unbound except as indicated in Part I "Horizontal commitments".	

¹⁹ For the purpose of transparency, "government" covers national, regional or local governmental bodies.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(c) Sale of TV and radio programs to TV and radio stations, excluding broadcasting. For the purpose of clarity: these commitments do not cover TV and radio programs broadcasting or other similar forms of transmission to the general public	(1) None. (2) None. (3) Unbound. (4) Unbound.	(1) None. (2) None. (3) Unbound. (4) Unbound.	
3. CONSTRUCTION AND RELATED ENGINEERING SERVICES			
A. General construction work for buildings (CPC 512)	(1) None. (2) None. (3) None.	(1) None. (2) None. (3) None, except the following:	
B. General construction work for civil engineering (CPC 513, including dredging)		- unbound with respect to subsidies and other forms of State support related to construction and civil engineering services for buildings and objects of national identity and/or buildings and objects of cultural heritage specified in official registries.	
C. Installation and assembly work (CPC 514, 516)			
D. Building completion and finishing work (CPC 517)			
E. Other (CPC 511 ²⁰ , 515, 518)	(4) Unbound except as indicated in Part I "Horizontal commitments".	(4) Unbound except as indicated in Part I "Horizontal commitments".	

²⁰ For the purposes of transparency: this code includes CPC 5115 ("Site preparation work for mining").

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
4. DISTRIBUTION SERVICES* Except distribution of weapons and arms systems, military ammunition and materiel, explosives, equipment and devices for explosion works and pyrotechnics, precious metals' scrap, precious metals and gems, narcotics and psychotropic substances.			
A. Commission agents' services ²¹ (CPC 621*, including perfumes and cosmetics; CPC 61111; CPC 6113; CPC 6121), except distribution of pharmaceuticals, medical articles	(1) None, except the following: - possibility to introduce non-discriminatory State monopoly on ethyl alcohol, alcoholic and alcohol-containing products ²² . (2) None. (3) None, except the following: - possibility to introduce non-discriminatory State monopoly on ethyl alcohol, alcoholic and alcohol-containing products. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None subject to the following: - unbound with respect to subsidies and other forms of State support for distribution of handicraft and other goods and objects, related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".	

²¹ For transparency purpose: Including sales by commission agents of registered food supplements in tablet or capsule form to consumers.

²² For the purposes of this Schedule of specific commitments alcohol-containing products do not include beer, perfumes and cosmetics.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
- Transactions on commodity exchange (CPC 621*, 622*)	(1) None, except the following: - foreign natural persons and/or legal entities that are not floor traders may participate in the exchange trade exclusively through brokers. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation; - foreign natural persons and/or legal entities that are not floor traders may participate in the exchange trade exclusively through brokers. (4) Unbound except as indicated in Part I "Horizontal commitments ".	(1) None, except as indicated in the column "Limitations on market access". (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
B. Wholesale trade services (CPC 622*, including perfumes and cosmetics; CPC 61111; CPC 6113; CPC 6121) ²³ , except distribution of pharmaceuticals, medical articles	(1) None, except the following: - possibility to introduce non-discriminatory State monopoly on ethyl alcohol, alcoholic and alcohol-containing products. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - possibility to introduce non-discriminatory State monopoly on ethyl alcohol, alcoholic and alcohol-containing products. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support for distribution of handicraft and other goods and objects, related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".	

²³ For transparency purpose: Including CPC 62244 – Wholesale trade services of radio and television equipment, musical instruments, music scores and audio and video records and tapes.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
C. Retailing services (CPC 631*; CPC 632*, including perfumes and cosmetics; CPC 6111*; CPC 6113*; CPC 6121*; CPC 6130* only with respect to automobile fuel) ²⁴ , except distribution of pharmaceuticals, medical articles	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - authorization from local authorities is required and shall be issued on a non-discriminatory basis taking into account the city-development planning and programmes of social and economic development in their jurisdiction. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support for distribution of handicraft and other goods and objects, related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".	

²⁴ For transparency purpose: Including CPC 63234 - Retail sales of radio and television equipment, musical instruments and records, music scores and tapes.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
Commission agents' services, wholesale trade services, retailing services with respect to the pharmaceuticals and medical articles (CPC 62117*, CPC 62251, CPC 62252, CPC 63211)	(1), (2) None, except the following: - compensation of the cost of pharmaceutical products and medical articles qualifying for the package provided under the system of State guarantees of free health care for citizens of the Russian Federation²⁵; - price formation for pharmaceutical products and medical articles. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation; - authorisation is required for supply of services in a particular territory issued on a non-discriminatory basis with respect to foreign services suppliers. The following considerations are taken as criteria for issuance of such an authorisation: - need for maintenance of the minimum required level of availability of pharmaceuticals and medical articles to the population qualifying for the package provided under the system of State guarantees of free health care for citizens of the Russian Federation²⁶ and being subject to compensation	(1), (2) None, except the following: - compensation of the cost of pharmaceutical products and medical articles qualifying for the package provided under the system of State guarantees of free health care for citizens of the Russian Federation²⁷; - price formation for pharmaceutical products and medical articles. (3) None, except as indicated in the column "Limitations on market access".	

²⁵ The system of State guarantees of free health care for citizens of the Russian Federation establishes compensation of medical services from budgets of all levels (federal, subjects of the Russian Federation, local self-government) and through mandatory medical insurance.

²⁶ The system of State guarantees of free health care for citizens of the Russian Federation establishes compensation of medical services from budgets of all levels (federal, subjects of the Russian Federation, local self-government) and through mandatory medical insurance.

²⁷ The system of State guarantees of free health care for citizens of the Russian Federation establishes compensation of medical services from budgets of all levels (federal, subjects of the Russian Federation, local self-government) and through mandatory medical insurance.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	with State funds, and maintenance of the respective number of suppliers of wholesale and retail services in pharmaceuticals and medical articles corresponding to the mentioned level; - ensuring uniform and balanced availability to the entire population of medical resources providing for out-patient and hospital treatment irrespective of the place of habitation and living conditions; - ensuring establishment of wholesale organisations trading in pharmaceuticals and medical articles, operating cross-subjects of the Russian Federation; establishment of such medical organisations is based on a "substitution" principle aimed at guaranteeing the provision of services by such organizations to the population throughout the whole populated territory of the country.		
	(4) Unbound except as indicated in Part I "Horizontal commitments".	(4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
D. Franchising (CPC 8929*) - including with respect to express delivery services as defined in this Schedule, but not with respect to: - legal services; - auditing services; - postal/courier services (apart from express delivery services as defined in this Schedule); - telecommunication services; - audio-visual services; - construction services; - education services; - financial services.	(1), (2), (3) None²⁸ (4) Unbound, except as indicated in the Part I "Horizontal commitments".	(1), (2), (3) None²⁹ (4) Unbound, except as indicated in Part I "Horizontal commitments".	
5. EDUCATIONAL SERVICES With respect to the privately funded education organizations/services only.			
A. Primary education services (CPC 921*) B. Secondary education services (CPC 922*)	(1), (2) None (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation, which is a non-commercial organisation; - authorisation may be required with respect to the acquisition of control of a juridical person of the Russian Federation related to the cultural	(1), (2) None, except the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State.	

²⁸ Commitments in the sector "Franchising" (CPC 8929*) will not prejudice the measures applied in accordance with this Schedule of specific commitments in other services sectors.

²⁹ Commitments in the sector "Franchising" (CPC 8929*) will not prejudice the measures applied in accordance with this Schedule of specific commitments in other services sectors.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	heritage of the Russian Federation and/or being a cultural property of the peoples of the Russian Federation ³⁰ . (4) Unbound except as indicated in Part I "Horizontal commitments".	(4) Unbound except as indicated in Part I "Horizontal commitments".	
C. Higher education services (CPC 923*)	(1) None. (2) None. (3) Unbound. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None, except the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State. (2) None, except the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State. (3) Unbound. (4) Unbound except as indicated in Part I "Horizontal commitments".	

³⁰ For the purpose of this Schedule of specific commitments:

- "The cultural heritage of the peoples of the Russian Federation" represents the material and spiritual values created in the past, and also the monuments and historic and cultural territories and facilities of importance for the preservation and development of the originality of the Russian Federation and of all its peoples, and their contribution to world civilisation;
- "The cultural values" represent moral and aesthetic ideals, norms and patterns of behaviour, languages and dialects, national traditions and customs, historical place-names, folklore, artistic handicrafts and crafts, works and acts of culture, results and methods of scientific research into cultural activity, buildings, structures, objects, and technologies of historic and cultural importance, and territories and facilities unique in their historical and cultural respects;
- "The cultural property of the peoples of the Russian Federation" is a totality of cultural values, and also of cultural organisations, institutions, and enterprises of general national (all-Russia) importance, which, by virtue of this fact, belong undividedly to the Russian Federation and its subjects without the right of their transfer to other States and Unions of States with the participation of the Russian Federation.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
D. Adult education not included in other categories (CPC 924*) in respect of foreign language courses, computer courses, business-courses, examination-training courses only	(1), (2) None. (3) None, except the following: commercial presence is allowed only in the form of a juridical person of the Russian Federation, which is a non-commercial organisation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1), (2) None, except the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support, including access to the financial and other material resources of the State. (4) Unbound except as indicated in Part I "Horizontal commitments".	
6. ENVIRONMENTAL SERVICES*			
Except for treatment of radioactive wastes/contamination.			
A. Sewage services (CPC 9401) B. Refuse disposal services (CPC 9402) C. Sanitation and similar services (CPC 9403) D. Other: - Cleaning services of exhaust gases (CPC 9404); - Noise abatement services (CPC 9405); - Nature and landscape protection (CPC 9406); - Environmental impact assessment services (CPC 9409*).	(1) Unbound, except the following: - for environmental impact assessment services (CPC 9409*) - none; - for consultancy/advisory services - none. (2) None. (3) None, except the following: - with respect to treatment of hazardous wastes: commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) Unbound, except the following: - for environmental impact assessment services (CPC 9409*) - none; - for consultancy/advisory services - none. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
7. FINANCIAL SERVICES			
Measures applicable to all sectors of financial services.			
Commitments in measures related to trade in financial services are undertaken in accordance with the General Agreement on Trade in Services (GATS) and the Annex on Financial Services.			
As a general rule, and in a non-discriminatory manner, juridical persons of the Russian Federation supplying financial services must adopt the organisational and legal form required by the legislation of the Russian Federation.			
To avoid conflict of interest and to achieve the objectives indicated in Article 2(a) of the Annex on Financial Services for organisations supplying financial services the permitted scope and types of operations of services in respective combinations shall be established on a non-discriminatory basis.			
The conditions or scope of activity set out in a licence or other form of authorization issued to a foreign-owned or affiliated financial services supplier prior to the date of accession, shall not be made more restrictive than those in effect on the date of accession, without prejudice to prudential regulations.			
The foreign equity restrictions resulting from the application of the financial services sector foreign equity ratio (except for foreign equity restrictions in specialized depositories of investment funds, unit investment funds and non-State pension funds, professional participants of the securities market engaged in keeping registers, or professional participants of the securities market engaged in depository operations under transactions made through a trade arranger) shall not apply to the creation or acquisition of financial services suppliers in the Russian Federation by foreign owned Russian juridical persons.			
A. All insurance and insurance-related services			
(a) Life insurance services (b) Non-life insurance services	(1), (2) None only with respect to the risks insurance connected with international: - maritime transportation; - commercial air transportation; - commercial space launching; - insurance covering in whole or in part: - international transportation of natural persons; - international transportation of export/import cargoes and the vehicles carrying them, including liability arising therefrom;	(1), (2) None only with respect to insurance of risks indicated in the column "Limitations on market access".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	- transportation of goods by international transport; - liability while in cross-border movement of private means of transportation only after joining of the international system of agreements and insurance certificates – Green Card. Within 4 years, starting from the date of Russia's accession to the WTO, - none with respect to insurance of risks connected with domestic commercial air (except following types of mandatory insurance: insurance of liability of the owner and operator of the aircraft; insurance of liability of the air carrier before passengers, consigner of goods, consignee; life and health insurance of aircraft staff) transportation and maritime transportation when such insurance covers any or all of the following: the goods being transported, the vehicle transporting the goods and any liability arising therefrom. (3) None, except the following: Commercial presence is allowed only in the form of a juridical person of the Russian Federation.	(3) None, except as indicated in the column "Limitations on market access".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	After 9 years from the date of Russia's accession to the WTO commercial presence in the form of a branch of a foreign insurer will be allowed in the field of life insurance and non-life insurance (except insurance of State procurement and mandatory insurance other than mandatory insurance of civil liability of owners of cars) subject to licensing, financial soundness and guarantee deposit requirements. To open a branch a foreign insurer must: - have been authorised to operate in the same types of insurance or reinsurance in its country of origin for at least 5 years (for non-life insurance); at least 8 years (for life insurance); - have not less than 5 years of experience in operating a branch in foreign markets; - have total assets of more than US\$5 billion at the end of the calendar year prior to application; - have its legal address and actual address in the same country. A branch of a foreign insurer must have a separate capitalization which shall be included in the calculation of the ratio of foreign participation in the total charter capital of insurers/reinsurers that are juridical persons of the Russian Federation. Creation of new branches of foreign insurers (as distinct from branches of juridical persons of the Russian Federation) may be denied if the ratio of total foreign participation in the total charter capital of insurers/reinsurers		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	that are juridical persons of the Russian Federation exceeds 50%. Prior authorisation is required: - to increase the charter capital of an insurer at the expense of foreign investor (investors) funds and/or those of a subsidiary thereof; - to alienate shares of (interest in) insurer in favour of foreign investor (investors) and/or subsidiary thereof. Insurers that are subsidiaries of foreign investors (principal organization) and/or in which foreign participation in the charter capital (voting shares) exceeds 49% as at the date of accession of Russia to the WTO, and having obtained their licenses to provide life insurance services, insurance of State procurement and mandatory insurance services before that date, may engage in such activity in accordance with their licenses obtained. For insurers that are subsidiaries of a foreign investor (investors) and/or in which foreign participation in the charter capital (voting shares) exceeds 51%: - For a period of 5 years starting from the date of Russia's accession to the WTO, unbound with respect to the issuance of licenses to provide life insurance services and mandatory personal insurance of passengers and mandatory insurance of civil liability of owners of cars. After 5 years from the date of Russia's accession to the WTO, this limitation shall be eliminated.		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	For insurers that are subsidiaries of a foreign investor (investors) and/or in which foreign participation in the charter capital (voting shares) exceeds 49%: - unbound with respect to the issuance of licenses to provide insurance of State procurements; - issuance of licenses and prior authorizations for operations in shares of (interest in) an insurer with foreign participation may be restricted if the ratio of total foreign participation in the total charter capital of insurers/reinsurers that are juridical persons of the Russian Federation exceeds 50%; - a foreign investor that is the parent company of a Russian subsidiary insurer shall have been authorised to supply respective insurance services in the country of its registration for at least 5 years. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(4) Unbound, except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(ii) Reinsurance and retrocession	(1), (2) None. (3) None, except the following: Commercial presence is allowed only in the form of a juridical person of the Russian Federation. After 9 years from the date of Russia's accession to the WTO commercial presence in the form of a branch of a foreign reinsurer will be allowed in the field of reinsurance (except reinsurance of risks connected with insurance of State procurement and mandatory insurance other than mandatory insurance of civil liability of owners of cars) subject to licensing, financial soundness and guarantee deposit requirements. To open a branch a foreign reinsurer must: - have been authorised to operate reinsurance in its country of origin for at least 5 years; - have not less than 5 years of experience in operating a branch in foreign markets; - have total assets of more than US\$5 billion at the end of the year prior to application; - have its legal address and actual address in the same country. A branch of a foreign reinsurer must have a separate capitalization which shall be included in the calculation of the ratio of foreign participation in the total charter capital of insurers/reinsurers that are juridical persons of the Russian Federation. Creation of new	(1), (2) None (3) None, except as indicated in the column "Limitations on market access".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	branches of foreign reinsurers (as distinct from branches of juridical persons of the Russian Federation) may be denied if the ratio of total foreign participation in the total charter capital of insurers/reinsurers that are juridical persons of the Russian Federation exceeds 50%. Prior authorisation is required: - to increase the charter capital of a reinsurer with foreign investor (investors) funds and/or those of subsidiary thereof; - to alienate shares of (interest in) reinsurer in favour of foreign investor and/or subsidiary thereof. For reinsurer that are subsidiaries of a foreign investor (investors) and/or in which foreign participation in the charter capital (voting shares) exceeds 49%: - For a period of 5 years after the date of Russia's accession to the WTO, unbound with respect to issuance of licenses to provide reinsurance and retrocession of risks in life insurance and mandatory insurance of civil liability of owners of cars. After 5 years from the date of Russia's accession to the WTO, this limitation shall be eliminated.		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	- Unbound in respect of issuance of licenses to provide reinsurance and retrocession of risks in insurance of State procurements. - Issuance of licenses and prior authorizations for operations in shares of (interest in) a reinsurer with foreign participation may be restricted if the ratio of total foreign participation in the total charter capital of insurers/reinsurers that are juridical persons of the Russian Federation exceeds 50%. - a foreign investor that is the parent company of a Russian subsidiary reinsurance organisation shall have been authorised to engage in reinsurance and retrocession in the country of its registration for at least 5 years. Insurers/reinsurers that are subsidiaries of foreign investors (principal organization) and/or in which foreign participation in the charter capital (voting shares) exceeds 49% as at the date of accession of Russia to the WTO, and having obtained their licence to provide insurance/reinsurance services in the field of life insurance, mandatory insurance and insurance of State procurement before that date, may engage in such activity in accordance with their licenses obtained. (4) Unbound except as indicated in Part I "Horizontal commitments".	(4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(iii) Insurance intermediation, such as brokerage and agency	(1), (2) None, except the following: - insurance intermediation related to the conclusion and distribution of insurance contracts on behalf of foreign insurance companies in the territory of the Russian Federation shall not be allowed (except for cases described in commitments on cross-border supply of insurance services). (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. - insurance intermediation, related to the conclusion and distribution of insurance contracts on behalf of foreign insurance companies in the territory of the Russian Federation shall not be allowed (except for cases described in commitments on cross-border supply of insurance services). (4) Unbound except as indicated in Part I "Horizontal commitments".	(1), (2) None, except the following: - insurance intermediation related to the conclusion and distribution of insurance contracts on behalf of foreign insurance companies in the territory of the Russian Federation shall not be allowed (except for cases described in commitments on cross-border supply of insurance services). (3) None except as indicated in the column "Limitations on market access" and subject to the following: - insurance intermediation, related to the conclusion and distribution of insurance contracts on behalf of foreign insurance companies in the territory of the Russian Federation shall not be allowed (except for cases described in commitments on cross-border supply of insurance services). (4) Unbound except as indicated in Part I "Horizontal commitments".	
(iv) Services auxiliary to insurance, such as consultancy, actuarial, risk assessment and claim settlement services	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
B. Banking and other financial services (excluding insurance), with respect to the following services only:			
(v) Acceptance of deposits and other repayable funds from the public; (vi) Lending of all types, including consumer credit, mortgage credit, factoring and financing of commercial transactions; (vii) Financial leasing; (viii) All payments and money transmission services, including credit, charge and debit cards, travellers cheques and bankers drafts; (ix) Guarantees and commitments; (x) Trading for own account or for account of customers, whether on an exchange, in an over-the-counter market or otherwise, the following: (A) money market instruments (including cheques, bills, certificates of deposits); (B) foreign exchange; (C) derivative products, including but not limited to, futures and options; (D) exchange rate and interest rate instruments, including products such as swaps, forward rate agreements; (E) transferable securities; (F) other negotiable instruments and financial assets, including bullion. (xi) Participation in issues of all kinds of securities, including underwriting and placement as agent (whether publicly or privately) and provision of services related to such issues; (xii) Money broking;	(1) None only with respect to: (vii) Financial leasing; (xv) Provision and transfer of financial information, and financial data processing and related software by suppliers of other financial services; (xvi*) Advisory, intermediation and other auxiliary financial services on all activities listed in subparagraphs (v) through (xv), including investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy (except the activity of financial consultant (sponsor broker), supplying services related to arrangement of securities issues). Unbound with respect to services listed in paragraphs (v), (vi), (viii), (ix), (x), (xi), (xii), (xiii), (xiv), and the part of (xvi) excluded above. (2) None for sub-sectors (v) to (xv) and for Advisory, intermediation and other auxiliary financial services on all activities listed in subparagraphs (v) through (xv), including investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy.	(1) None only with respect to: (vii) Financial leasing; (xv) Provision and transfer of financial information, and financial data processing and related software by suppliers of other financial services; (xvi*) Advisory, intermediation and other auxiliary financial services on all activities listed in subparagraphs (v) through (xv), including investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy (except the activity of financial consultant (sponsor broker), supplying services related to arrangement of securities issues). Unbound with respect to services listed in paragraphs (v), (vi), (viii), (ix), (x), (xi), (xii), (xiii), (xiv), and the part of (xvi) excluded above. (2) None for sub-sectors (v) to (xv) and for Advisory, intermediation and other auxiliary financial services on all activities listed in subparagraphs (v) through (xv), including investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy.	In order to guarantee a level-playing field, Russian authorities shall ensure that foreign banks established in Russia shall enjoy the same level of guarantee from the State for deposits as all other banks (including State-owned banks) and the same obligations as regards their participation in a possible deposit insurance mechanism.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(xiii) Asset management such as cash or portfolio management, all forms of collective investment management, pension fund management, custodial depository and trust services; (xiv) Settlement and clearing services for financial assets, including securities, derivative products and other negotiable instruments; (xv) Provision and transfer of financial information, and financial data processing and related software by suppliers of other financial services; (xvi) Advisory, intermediation and other auxiliary financial services on all the activities listed in subparagraphs (v) through (xv), including credit reference and analysis, investment and portfolio research and advice, advice on acquisitions and on corporate restructuring and strategy.			

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	(3) With respect to banking services: Commercial presence is allowed only in the form of a juridical person of the Russian Federation and in the form of a representative office of a foreign bank. The main founder and participant of a credit organisation being a subsidiary with foreign investment must be a foreign bank qualifying as such under the laws of its country of location (registration); Foreign capital participation in the bank system of the Russian Federation is limited to 50%³¹. For the purposes of control over the quota of foreign participation in the bank system of the Russian Federation prior authorisation from the Central Bank is required: - to establish a credit organisation with foreign participation, including subsidiaries and dependent companies; - to increase the charter capital of a credit organisation with non-resident (non-residents) funds; - to alienate shares (interest) of credit organisation in favour of non-residents. With respect to financial services other than banking services: Commercial presence is allowed only in the form of a juridical person of the	(3) None, except as indicated in the column "Limitations on market access".	

³¹ Foreign capital if invested in potentially privatized banks shall not be included in the computation of this ceiling (ratio).

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	Russian Federation and in the form of a representative office. The share of votes of non-residents and their affiliates, participating in the capital of professional participant in the securities market engaged in keeping registers of holders of inscribed securities shall not exceed 25%. The juridical persons engaged in keeping holders of inscribed securities are entitled to carry out such activities provided that not later than 6 months after receipt of the licence the number of issuers with over 500 shareholders whose share registers are kept by such person shall be no less than 50. This measure is non-discriminatory and is applied both to residents and non-residents. Trading in new negotiable instruments and financial assets (under (x)(F)) may be allowed only after authorization and in accordance with the respective conditions provided for by the Russian authorities. This limitation is applied on a non-discriminatory basis. The share of votes of one person, participating in the capital of a stock exchange shall not exceed 20%. This measure is non-discriminatory and is applied both to residents and non-residents. The share of votes of non-residents and their affiliates participating in the capital of specialized depositories of investment funds, unit investment funds and non-State pension funds shall not exceed		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	25%. This measure is established for 3 years. The share of votes of non-residents and their affiliates participating in the capital of a professional participant in the securities market engaged in depository operations under transactions made through a trade arranger shall not exceed 25%. Only juridical persons of the Russian Federation may participate in clearing on the securities market. For the purposes of control over the quota of total foreign participation in certain segments on securities market as well as observance of norms of foreign participation with respect to certain types of professional participants of securities market all the actions leading to an increase in the share of votes held by non-residents and their affiliates or an increase of the aggregate share of non-residents and their affiliates in the charter capital of a professional participant of the securities market engaged in keeping registers and depository operations under transactions made through a trade arranger as well as in the charter capital of specialized depositories require an advance permission of the authorized federal body of the Russian Federation. It is not permitted to conduct operations on the securities market otherwise than through brokers. This measure is non-discriminatory and is applied both to residents and non-residents.		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	It is not permitted to conduct operations with derivatives on the securities market otherwise than through brokers. This measure is non-discriminatory and is applied both to residents and non-residents. The share of votes of non-residents and their affiliates participating in the capital of a professional participant in the securities market engaged in: - keeping registers of holders of inscribed securities; - activity of specialized depositories of investment funds, unit investment funds and non-State pension funds, - depository operations under transactions made through a trade arranger, exceeding (by the moment of introduction of the limitation) the amount established by this Schedule of specific commitments, cannot be considered as the reason to cessation of activity (withdrawal of the licence/not renewal of the licence) of the professional participant of the securities market which had received the licence of aforementioned activities before the accession of the Russian Federation to the WTO.		

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	(4) Unbound except as indicated in Part I "Horizontal commitments" and subject to the following: - the chief accountant, the head of a single-man executive body or one of the chief officers of a collegiate executive body of a credit organization being a subsidiary of a foreign bank or dependent thereon, who is not a citizen of the Russian Federation must provide a document confirming their knowledge of Russian.	(4) Unbound except as indicated in Part I "Horizontal commitments".	
8. HEALTH RELATED AND SOCIAL SERVICES			
A. Hospital services (CPC 9311*) with respect to the privately funded health care organizations/services only	(1) Unbound. (2) None, except the following: - compensation of costs of medical services qualifying for the package provided under the system of State guarantees of free health care for citizens of the Russian Federation³². (3) Unbound. (4) Unbound.	(1) Unbound. (2) None, except the following: - compensation of costs of medical services qualifying for the package provided under the system of State guarantees of free health care for citizens of the Russian Federation³³. (3) Unbound. (4) Unbound.	

³² The system of state guarantees of free health care for citizens of the Russian Federation establishes compensation of medical services from budgets at all levels (federal, subjects of the Russian Federation, local self-government) and through mandatory medical insurance.

³³ The system of state guarantees of free health care for citizens of the Russian Federation establishes compensation of medical services from budgets at all levels (federal, subjects of the Russian Federation, local self-government) and through mandatory medical insurance.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
9. TOURISM AND TRAVEL RELATED SERVICES			
A. Hotels and Restaurants (including catering) (CPC 641, CPC 642, CPC 643)	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. - authorization from local authorities is required and shall be issued on a non-discriminatory basis, taking into account the city-development planning and programmes of social and economic development in their jurisdiction. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	
B. Tour operators and tour agencies services (CPC 7471) C. Tourist guide services (CPC 7472)	(1) None (2) None (3) None, except the following: Commercial presence is allowed only in the form of a juridical person of the Russian Federation being a commercial organisation. The foreign participant of commercial organisation with foreign participation must be a juridical person with a minimum of 5 years' experience of supplying tour operator services in the country of its location. For the purposes of supply of out-bound and in-bound tourism operator services total foreign participation in charter capital (voting shares) may be limited to 49%. There will be no limitations after 7 years from the date of Russia's accession to the WTO.	(1) None (2) None (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support related to national culture and identity.	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	Foreign participation in charter capital of the Russian juridical persons of more than 49% will not be considered as reason for termination of the activity and/or disinvestment of juridical persons of the Russian Federation which received licence on supply of tourism and travel related services before the date of implementation of this restriction. Natural persons providing guide (guide-interpreter) services must be citizens of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments", and subject to the following: - natural persons providing guide (guide-interpreter) services must be citizens of the Russian Federation.	(4) Unbound except as indicated in Part I "Horizontal commitments".	
10. RECREATIONAL, CULTURAL, AND SPORTING SERVICES			
A. Entertainment services (CPC 96191-96195) Other entertainment services n.e.c. (other than audio-visual services) only with respect to cinema theatre operation services (CPC 96199*).	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support related to national culture and identity. (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
B. News agency services (CPC 962)	(1) None. (2) None. (3) None except the following: - founders of mass media agencies must be citizens of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access" and subject to the following: - unbound with respect to subsidies and other forms of State support related to national culture and identity. (4) Unbound, except as indicated in Part I "Horizontal commitments".	
11. TRANSPORT SERVICES			
A. Maritime Transport Services			The following services are made available to international maritime transport suppliers on reasonable and non-discriminatory terms and conditions at trade ports: - Pilotage (for the Russian flagged vessels the use of pilotage services may be optional); - Ice-breaking services; - Towing and tug assistance; - Provisioning, fuelling and watering; - Garbage collecting and ballast waste disposal; - Port Captain's services; - Navigation aids (lighthouse, aids to navigation, radar vessel traffic services, other electronic aids and systems to enhance safety of navigation, etc.); - Shore-based operational services essential to ship operations, including communications, water and electrical supplies; - Emergency repair facilities; - Anchorage, berth and berthing services.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
- International Transport (CPC 7211, CPC 7212), less cabotage transport ³⁴	(1) (a) <u>Liner Shipping</u>: None, except the following: - the priority right to take part in the conduct of the Production Sharing Agreement³⁵ as carriers belongs to the juridical persons of the Russian Federation. (b) <u>Bulk, tramp, and other international shipping including passenger transportation</u>: None, except for the following: - the priority right to take part in the conduct of the Production Sharing Agreement as carriers belongs to the juridical persons of the Russian Federation. (2) None, except for the following: - the priority right to take part in the conduct of the Production Sharing Agreement as carriers belongs to the juridical persons of the Russian Federation.	(1) (a) None, except as indicated in the column "Limitations on market access". (b) None, except as indicated in the column "Limitations on market access". (2) None, except as indicated in the column "Limitations on market access".	

³⁴ Without prejudice to the scope of activities which may be considered as "cabotage" under the relevant legislation of the Russian Federation, this schedule does not include "maritime cabotage services", which are assumed to cover transportation of passengers or goods between the ports located in the Russian Federation and transportation of passengers and goods between a port located in the Russian Federation and installations or structures situated on the continental shelf of the Russian Federation as well as transportation of passengers and goods within the territorial waters of the Russian Federation.

³⁵ Production sharing agreements for the exploration, development and production of mineral raw materials.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
	(3) (a) Establishment of registered company for the purpose of operating a fleet under the national flag of the Russian Federation: unbound. (b) Other forms of commercial presence for the supply of international maritime transport services³⁶: none, except the following: - commercial presence is allowed only in form of juridical person of the Russian Federation. (4) (a) Ship's crews: unbound. (b) Key personnel employed in relation to a commercial presence as defined under mode 3(b): unbound, except as indicated in Part I "Horizontal Commitments".	(3) (a) Unbound. (b) None, except as indicated in the column "Limitations on market access". (4) (a) Unbound. (b) Unbound, except as indicated in Part I "Horizontal Commitments"	

³⁶ "Other forms of commercial presence for the supply of international maritime transport services" means the ability for international maritime transport service suppliers of other Members to undertake locally all activities, which are necessary for the supply of their customers of a partially or fully integrated transport service, within which the maritime transport constitutes a substantial element. (This commitment shall however not be construed as limiting in any manner the commitments undertaken under the cross-border mode of delivery.)

These activities include, but are not limited to:

- (a) marketing and sales of maritime transport and related services through direct contact with customers, from quotation to invoicing, these services being those operated or offered by the service supplier itself or by service suppliers with which the service seller has established standing business arrangements;
- (b) the acquisition, on their own account or on behalf of their customers (and the resale to their customers) of any transport and related services, including inward transport by any mode, particularly inland waterways, road and rail, necessary for the supply of the integrated services;
- (c) the preparation of documentation concerning transport documents, customs documents, or other documents related to the origin and character of the goods transported;
- (d) the provision of business information by any means, including computerised information systems and electronic data interchange (subject to the provisions of the Annex on Telecommunications);
- (e) the setting up of any business arrangements (including participation in the stock of a company) and the appointment of personnel recruited locally (or, in the case of foreign personnel, subject to the Horizontal commitments on presence of natural persons of this Schedule) with any locally established shipping agency;
- (f) acting on behalf of the companies, organizing the call of the ship or taking over cargoes when required.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
Maritime auxiliary services Cargo-handling services ³⁷	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) Unbound. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) None, except as indicated in Part I "Horizontal commitments".	
Storage and warehousing services (CPS 742*); Container station and depot services ³⁸	(1) Unbound ³⁹ . (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) Unbound ⁴⁰ . (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments".	

³⁷ "Maritime cargo handling services" means activities exercised by stevedore companies, including terminal operators, but not including the direct activities of dockers, when this workforce is organised independently of the stevedoring or terminal operator companies. The activities covered include the organization and supervision of:

- the loading/discharging of cargo to/from a ship;
- the lashing/unlashing of cargo; and
- the reception/delivery and safekeeping of cargoes before shipment or after discharge.

³⁸ "Container station and depot services" means activities consisting in storing containers, whether in port areas or inland, with a view to their stuffing/stripping, repairing and making them available for shipments.

³⁹ A commitment on this mode of supply is not feasible.

⁴⁰ A commitment on this mode of supply is not feasible.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
Customs Brokers' Services ⁴¹	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) Unbound. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments"	
Freight Forwarding Services ⁴² Maritime Agency Services ⁴³	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments"	
B. Internal Waterways Transport (f) "Other supporting services for internal waterway transport" (CPC 7459)	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None. (4) Unbound except as indicated in Part I "Horizontal commitments".	

⁴¹ "Customs brokers' services" means activities consisting in carrying out on behalf of another party customs formalities concerning import, export or through transport of cargoes, whether this services is the main activity of the service provider or a usual complement of its main activity.

⁴² "Freight forwarding services" means the activity consisting of organizing and monitoring shipment operations on behalf of shippers, through the acquisition of transport and related services, preparation of documentation and provision of business information.

⁴³ "Maritime agency services" means activities consisting in fulfilling as agent on behalf of his own name or the name of ship-owner legal or other actions on the instructions and for account of ship-owner within a given seaport or a given area, for the following purposes:

- marketing and sales of maritime transport and related services, from quotation to invoicing, and issuance of bills of lading on behalf of the companies, acquisition and resale of the necessary related services, preparation of documentation, and provision of business information; and
- acting on behalf of the companies organizing the call of the ship or taking over cargoes when required.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
C. Air Transport Services (d) Maintenance and repair of aircraft (part of CPC 8868**) only to the extent of maintenance and repair activities when undertaken on an aircraft or a part thereof, while it is withdrawn from transport services. Does not include line maintenance or other repair or maintenance activities undertaken by an air carrier (including its agents or contractors) on aircraft it owns, leases, or operates.	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation; - foreign participation in the charter capital of the juridical persons of the Russian Federation established before the date of the accession of the Russian Federation to WTO must not exceed 25%. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	
Selling and marketing of air transport services ⁴⁴ ; Computer reservation systems	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation; - unbound with respect to the foreign settlement systems and any operations with neutral ticket forms of those systems. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access and the following: - unbound with respect to the foreign settlement systems and any operations with neutral ticket forms of those systems. (4) Unbound, except as indicated in Part I "Horizontal commitments".	

⁴⁴ "Selling and marketing of air transport services" mean the sell by the air transport carrier its own tickets and market of its air transport services including all aspects of marketing such as market research, advertising and distribution. These activities do not include the pricing of air transport services nor the applicable conditions.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
E. Rail Transport Services (d) Maintenance and repair of rail transport equipment (part of CPC 8868**), except maintenance of inventory fleet railway cars	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - maintenance of cars when on public use railway lines is carried out in the same manner as maintenance of inventory fleet cars of such railways; - maintenance and repair of rail transport as performed by suppliers of forwarding services are regulated exclusively by measures stipulated in section 11.H.c "Transport agencies services"; - the supplying of car-cleaning services is allowed only on the basis of a limited term contract with the railway company. (4) Unbound except as indicated in Part I "Horizontal commitments" and of the following: - only citizens of the Russian Federation are allowed to provide maintenance and repair of rail transport.	(1) Unbound. (2) Unbound. (3) Unbound. (4) Unbound except as indicated in Part I "Horizontal commitments".	

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
F. Road Transport Services (a) Passengers transportation (CPC 7121*, CPC 7122*) (b) Freight transportation (CPC 7123*) ⁴⁵	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - the vehicles engaged in transportation must be registered in the territory of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments" and subject to the following: - drivers of vehicles engaged in transportation between the points located within the territory of the Russian Federation must be citizens of the Russian Federation.	(1) Unbound. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments".	
(d) Maintenance and repair of road transport equipment (CPC 6112, CPC 8867)	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	

⁴⁵ Including, *inter alia*, transportation of individual items, but without prejudice to commitments on the sector "Courier services".

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(e) Supporting services for road transport services - in respect of bus terminals only, (CPC 7441*) - and other supporting services for road transport services (CPC 7449)	(1) None. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments".	(1) None. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	
H. Services Auxiliary to all Modes of Transport* (excluding respective auxiliary services for space transport and pipeline transport). (a) Cargo-handling services (CPC 741*), except cargo-handling services for maritime that are committed in the Section 11.A.	(1) Unbound ⁴⁶ (2) None, except the following: - unbound with respect to cargo-handling services for air transport and rail transport. (3) None, except the following: - Commercial presence is allowed only in the form of a juridical person of the Russian Federation; - unbound with respect to cargo-handling services for air transport and rail transport. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) Unbound ⁴⁷ (2) None, except the following: - unbound with respect to cargo-handling services for air transport and rail transport. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments".	

⁴⁶ A commitment on this mode of supply is not feasible.

⁴⁷ A commitment on this mode of supply is not feasible.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(b) Storage and warehouses services (CPC 742*), except storage and warehouses services for maritime that are committed in the Section 11.A.	(1) Unbound⁴⁸ (2) None, except the following: - unbound with respect to storage and warehouses services for rail transport. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation; - unbound with respect to storage and warehouses services for rail transport. (4) Unbound, except as indicated in Part I "Horizontal commitments".	(1) Unbound⁴⁹ (2) None, except the following: - unbound with respect to storage and warehouses services for rail transport. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments".	
(c) Freight transport agency services (CPC 748*), except freight transport agency services for maritime that are committed in the Section 11.A.	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in the form of a juridical person of the Russian Federation. (4) Unbound except as indicated in Part I "Horizontal commitments", and subject to the following: - the employees responsible for the loading, fixing and unloading of cargoes in rail transport must be citizens of the Russian Federation only.	(1) Unbound. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound except as indicated in Part I "Horizontal commitments".	

⁴⁸ A commitment on this mode of supply is not feasible.

⁴⁹ A commitment on this mode of supply is not feasible.

Modes of supply: (1) Cross-border supply (2) Consumption abroad (3) Commercial presence (4) Presence of natural persons

Sectors and sub-sectors	Limitations on Market Access	Limitations on National Treatment	Additional commitments
(d) Other supporting and auxiliary transport services with respect to freight brokerage services, transportation document preparation services, freight inspection and weighing services (CPC 7490*).	(1) Unbound. (2) None. (3) None, except the following: - commercial presence is allowed only in form of a juridical person of the Russian Federation. (4) Unbound, except as indicated in Part I "Horizontal commitments"	(1) Unbound. (2) None. (3) None, except as indicated in the column "Limitations on market access". (4) Unbound, except as indicated in Part I "Horizontal commitments"	

Russian Federation – List of Article II (MFN) Exemptions

Sectors or sub-sectors	Description of measure indicating its inconsistency with Article II	Country or countries to which the measure applies	Intended duration	Conditions creating the need for the MFN exemption
All sectors.	Measures concerning investment activity and available protection.	All parties to existing and future respective agreements which may be concluded.	Indefinite.	The measures are aimed at forming a legal framework for mutual protection and investment promotion.
All sectors/presence of natural persons.	Measures based on existing and future agreements with the objective of providing for the movement of natural persons supplying services.	Parties to the Partnership and Cooperation Agreement between the Russian federation and the European Communities and their Member States signed at 24 June 1994 with future supplements; CIS countries.	Indefinite.	Measures are aimed at progressive liberalization between the Russian Federation and its regional trading partners.
2. COMMUNICATION SERVICES				
D. Audio-visual services	Measures with respect to broadcasting and other similar forms of transmission of the audio-visual works, including television and radio programs, meeting origin criteria and other criteria, established by the respective agreements.	Parties to the Council of Europe Convention on Trans-frontier Television or other countries with whom bilateral agreements may be concluded.	Indefinite.	Development of cultural links and protection of cultural heritage.
D. Audio-visual services	Measures based on co-production agreements, which confer national treatment with respect to audio-visual works covered by these agreements, including in relation to subsidies for production and distribution.	Parties to the European Convention on Cinematographic Coproduction and countries with whom bilateral co-production agreements are/may be concluded.	Indefinite.	Development of cultural links and protection of cultural heritage.
D. Audio-visual services	Measures granting the benefit of support programs to audio-visual works, including television and radio programs, and suppliers of such works meeting certain origin criteria.	Parties to the Council of Europe Convention on Trans-frontier Television, Parties to the European Convention on Cinematographic Coproduction or other European countries with whom bilateral agreements may be concluded.	Indefinite.	Development of cultural links and protection of cultural heritage.
5. EDUCATIONAL SERVICES				
	Measures with respect to opening and activity of branches.	Azerbaijan, Armenia, Belarus, Georgia, Kazakhstan, Kyrgyz Republic, Moldova, Tajikistan, Turkmen, Uzbekistan, Ukraine.	Indefinite.	Measures are aimed at preservation and development of relations in the field of education.

Sectors or sub-sectors	Description of measure indicating its inconsistency with Article II	Country or countries to which the measure applies	Intended duration	Conditions creating the need for the MFN exemption
11. TRANSPORT SERVICES				
A. Maritime Transport Services	In the cases and subject to the procedure established by the Government of the Russian Federation cabotage transportation and cabotage towing may be carried out by foreign vessels.	All countries.	Indefinite.	The measure reflects existing practice of ad hoc regulation of the issues concerned on the basis of case-by-case decisions and subject to the concrete situation.
	Measures with respect to the access of vessels under Polish flag to the Russian part of Kaliningrad bay and Baltic sea channel.	Poland.	Indefinite.	Ensuring of obligations under international agreement and preservation of traditional relations in the field of maritime transportation.
	Special regime of shipping in Caspian sea.	Azerbaijan, Iran, Kazakhstan, Turkmenistan.	Indefinite.	Development of regional cooperation.
	Measures allowing for bilateral agreements concerning cargo sharing and cargo reservation.	Algeria, Brazil, Malaysia, Mexico, Syria, Tunisia, Sri Lanka, Pakistan, Ethiopia, Ghana.	Indefinite.	Existing respective agreements.
	Measures related to maritime operators such as priority rights under the Production Sharing Agreements and in relation to maritime agency activities.	Parties to the Partnership and Cooperation Agreement between the Russian federation and the European Communities and their Member States signed at 24 June 1994 with future supplements.	Indefinite.	Ensuring of obligations under international agreement.
	Measures related to maritime operators such as priority rights under the Production Sharing Agreements.	Norway.	Indefinite.	Ensuring of obligations under international agreement.
B. Internal Waterways Transport	Measures contained in the existing and future agreements on access to inland waterways which provide for the preferential treatment with respect to traffic rights and access to ports and port service, payment of tonnage, dues and other charges.	All parties to existing and future agreements.	Indefinite.	Maintenance and development of the achieved level of economic links with the States concerned and more particularly with certain regions of such states.
a) Passenger transportation b) Freight transportation				
C. Air Transport Services	Measures concerning establishment of companies and opening of representative offices, applied on the basis of reciprocity.	All parties to existing and future respective air transportation agreements.	Indefinite.	Implementation of the conditions for supply of air transport services established in the framework of the existing bilateral air transportation agreements.
- Selling and marketing				

Sectors or sub-sectors	Description of measure indicating its inconsistency with Article II	Country or countries to which the measure applies	Intended duration	Conditions creating the need for the MFN exemption
E. Rail Transport Services	Measures maintained in the framework of the existing and future agreements regulating the rules of carriage, the terms of operation and transportation, supply of services related to rail transport services in the territory of Russian Federation and between the countries – parties to the agreements.	All parties to existing and future agreements.	Indefinite.	Ensuring the integrity of railway transport as a single production and technological complex, regulation of carriage in the territory of the Russian Federation and between the countries - parties of the agreements.
F. Road Transport Services - International road passenger and freight transportation	Measures in the framework of the existing and future agreements on market access in respect of the road transport services including tax exemptions.	All parties to existing and future respective agreements, which may be concluded.	Indefinite.	Limitations, prohibitions, and differences in the market access treatments are applied on the basis of reciprocity with respect to States maintaining similar measures in respect of the Russian carriers and/or means of transport.

ANNEX I

List of Incumbent Operators

OJSC "Rostelecom"
SUE¹ "Kosmicheskaya svjaz"
OJSC "Kostromskaya GTS"
OJSC "MGTS"
OJSC "Lensvjaz"
OJSC "Svjaz" of the Republic of Komi
OJSC "Pskovskaja GTS"
OJSC "Tattelecom"
OJSC "Bashinformsvjaz"
SUE "Upravlenie electrosvjazi of Ingush Republic"
SUE "Electrosvjaz" in Chechen Republic"
OJSC "Dagsvjazinform"
OJSC "Tivasvjazinform"
OJSC "Sahatelecom"
OJSC "Chukotkasvjazinform"

7 inter-regional operators:

OJSC "Zentralnaja telekommunicazionnaja kompanija"
OJSC "Severo-zapadnij telecom"
OJSC "Volgatelecom"
OJSC "Juzjnaja telekommunicazionnaja kompanija"
OJSC "Uralsvjazinform"
OJSC "Sibirjtelecom"
OJSC "Daljnevostochnaja kompanija svjazi"

¹ State unitary enterprise.

ADDITIONAL COMMITMENTS BY THE RUSSIAN FEDERATION ON BASIC TELECOMMUNICATIONS SERVICES

I. SCOPE

The following are definitions and principles on regulatory framework for the basic telecommunications services.

Definitions

Users mean service consumers and service suppliers.

Essential Facilities means facilities of a public telecommunications transport network or services that:

- (a) are exclusively or predominantly provided by a single or limited number of suppliers; and
- (b) cannot feasibly be economically or technically substituted in order to provide a service.

A major supplier is a supplier which has the ability to materially affect the terms of participation (having regard to price and supply) in the relevant market for basic telecommunications services as a result of:

- (a) control over essential facilities; or
- (b) use of its position in the market.

1. Competitive safeguards

1.1 Prevention of anti-competitive practices in telecommunications

Appropriate measures shall be maintained for the purpose of preventing suppliers who, alone or together, are a major supplier from engaging in or continuing anti-competitive practice.

1.2 Safeguards

The anti-competitive practices referred to above shall include in particular:

- (a) engaging in anti-competitive cross-subsidization;
- (b) using information obtained from competitors with anti-competitive results; and
- (c) not making available to other services suppliers on a timely basis technical information about essential facilities and commercially relevant information which are necessary for them to provide services.

2. Interconnection

2.1 This section applies to linking with suppliers providing public telecommunications transport networks or services in order to allow the users of one supplier to communicate with users of another supplier and to access services provided by another supplier, where specific commitments are undertaken.

2.2 Interconnection to be ensured

Interconnection with a major supplier will be ensured at any technically feasible point in the network. Such interconnection is provided:

- (a) under non-discriminatory terms, conditions (including technical standards and specifications) and rates and of a quality no less favourable than that provided for its own like services or for like services of non-affiliated service supplier or for its subsidiaries or other affiliates;
- (b) in a timely fashion, on terms, conditions (including technical standards and specifications) and cost-oriented rates that are transparent, reasonable, having regard to economic feasibility, and sufficiently unbundled so that the supplier need not pay for network components or facilities that it does not require for the services to be provided; and
- (c) upon request, at points in addition to the network termination points offered to the majority of users, subject to charges that reflect the cost of construction of necessary additional facilities.

2.3 Public availability of the procedures for interconnection negotiations

The procedures applicable for interconnection to a major supplier will be made publicly available.

2.4 Transparency of interconnection arrangements

It is ensured that a major supplier will make publicly available either its interconnection agreements or a reference interconnection offer.

2.5 Interconnection: dispute settlement

A service supplier requesting interconnection with a major supplier will have recourse, either:

- (a) at any time, or
- (b) after a reasonable period of time which has been made publicly known to an independent domestic body, which may be a regulatory body as referred to in paragraph 5 below, to resolve disputes regarding appropriate terms, conditions and rates for interconnection within a reasonable period of time, to the extent that these have not been established previously.

3. Universal service

Any Member has the right to define the kind of universal service obligation it wishes to maintain. Such obligations will not be regarded as anti-competitive per se, provided they are administered in a transparent, non-discriminatory and competitively neutral manner and are not more burdensome than necessary for the kind of universal service defined by the Member.

4. Public availability of licensing criteria

Where a licence is required, the following will be publicly available:

- (a) all the licensing criteria and the period of time normally required to reach a decision concerning an application for a licence; and
- (b) the terms and conditions of individual licenses.

The reasons for the denial of a licence will be made known to the applicant upon request.

5. Independent regulators

The regulatory body is separate from, and not accountable to, any supplier of basic telecommunications services. The decisions of and the procedures used by regulators shall be impartial with respect to all market participants.

6. Allocation and use of scarce resources

Any procedures for the allocation and use of scarce resources, including frequencies, numbers and rights of way, will be carried out in an objective, timely, transparent and non-discriminatory manner. The current state of allocated frequency bands will be made publicly available, but detailed identification of frequencies allocated for specific government uses is not required.
